

**Court No. - 21**

**Case :-** WRIT - C No. - 40410 of 2014

**Petitioner :-** Gajanand Sharma

**Respondent :-** State Of U.P. And 6 Others

**Counsel for Petitioner :-** Mirza Ali Zulfaquar

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Amreshwar Pratap Sahi,J.**

**Hon'ble Vivek Kumar Birla,J.**

Heard learned counsel for the petitioner and Sri Mahboob Ahmad for the respondents no.2, 3 and 4.

The petitioner claims himself to be the tenant of a premise and the respondent no.7 is the landlord. The electricity connection has been disconnected and the petitioner appears to have applied for fresh connection.

There is already a landlord-tenant suit pending being Suit No.51 of 2002.

The rights of the parties to occupy the premises would be governed by the suit, but so far as the electricity connection is concerned, the petitioner will be entitled to a connection only if he fulfills the criteria prescribed under Clause 4.4 of the Electricity Supply Code, 2005.

Sri Mahboob Ahmad for the respondent-Electricity Department submits that the application which has been filed by the petitioner and copy whereof is Annexure 7 does not appear to be in the prescribed proforma.

Accordingly, it shall be open to the petitioner to file an appropriate application before the respondent no.4 in accordance with Electricity Supply Code, 2005 and then the Executive Engineer shall proceed to take a decision after putting the landlord to notice in this regard preferably within three months' from the date of filing of a proper application.

With the aforesaid observations, this writ petition is disposed of.

**Order Date :-** 6.8.2014

Anand Sri./-